

purpose of determining the line of demarcation with greater accuracy. In order to avoid the inconvenience to either party which might result from the adoption of a line deviating from recognized and well-established frontiers, it is agreed that, in those portions of the projected line where the frontier is not determined by the trade routes, regard shall be had to the present political divisions of the territories so that the tribes belonging to the territories of Tessaoua-Maradi and Zinder shall, as far as possible, be left to France and those belonging to the territories of the British zone shall, as far as possible, be left to Great Britain.

It is further agreed that, on Lake Chad, the frontier line shall, if necessary, be modified so as to assure to France a communication through open water at all seasons between her possessions on the north-west and those on the south-east of the Lake and a portion of the surface of the open waters of the Lake at least proportionate to that assigned to her by the map forming Annex 2 of the Convention of the 14th June, 1898.

In that portion of the River Komadugu which is common to both parties the populations on the banks shall have equal rights of fishing.

ARTICLE IX.

The present Convention shall be ratified, and the ratifications shall be exchanged at London, within eight months or earlier if possible.

In witness whereof his Excellency the Ambassador of the French Republic at the Court of His Majesty the King of the United Kingdom of Great Britain and Ireland and of the British Dominions beyond the Seas, Emperor of India, and His Majesty's Principal Secretary of State for Foreign Affairs, duly authorized for that purpose, have signed the present Convention and have affixed thereto their seals.

CHAPTER 34.

An Act to explain and amend Section forty-eight of the Irish Land Act, 1903, with respect to the payment and application of the percentage provided by the said section.
[15th August 1904.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

1. Any land wholly or partly untenanted sold to the Land Commission or the Congested Districts Board may be regarded as an estate for the purpose of the payment of any percentage under section forty-eight of the Irish Land Act, 1903.

Amendment
of 3 Edw. 7.
c. 37. s. 48.
as to un-
tenanted land.

2. The percentage mentioned in the said section forty-eight may, subject to the enactments contained in the proviso to subsection one and in subsection four thereof, be paid to any vendor, other than the Congested Districts Board, whether such vendor is a person entitled to a beneficial interest in the land sold or is a trustee or other person not so entitled, and, save as herein-after

As to payment
and application
of percentage.

provided, shall be held by him on the trusts (if any) affecting the purchase money.

Special provisions as to tenants for life, persons under disability, &c.

3.—(1) Where the vendor is a tenant for life or a person having the powers of a tenant for life under the Settled Land Acts, 1882 to 1890, the percentage shall, subject to those enactments of the said section forty-eight mentioned in the last preceding section, be retained by him as his own proper moneys for his own use and benefit, free and discharged from all claims upon the lands sold or the purchase money thereof and from any trust affecting the same.

Provided that, where the vendor is a person exercising any power of sale on behalf of a lunatic person of unsound mind or infant or where the vendor is a lunatic or person of unsound mind selling pursuant to any order made by the Lord Chancellor, the percentage shall be held for the use and benefit of the same persons or upon the same trusts, as the case may be, as if the lunatic, person of unsound mind or infant, as the case may be, were not under any disability.

45 & 46 Vict.
c. 38.

Provided also that, where the vendors are husband and wife exercising together the powers of a tenant for life under section sixty-one of the Settled Land Act, 1882, the percentage shall be retained by them jointly for their own use and benefit, free and discharged from all claims and trusts as aforesaid.

34 & 35 Vict.
c. 22.

Construction
and citation.
8 Edw. 7.
c. 37.

(2) The expression "lunatic" in this section has the same meaning as in the Lunacy Regulation (Ireland) Act, 1871.

4. This Act shall be construed as one with the Irish Land Act, 1903, and may be cited with the Land Purchase Acts, and the said Act of 1903 shall be construed and shall take effect from the date of its passing as if this Act had then formed part thereof.

Short title.

5. This Act may be cited as the Irish Land Act, 1904.

CHAPTER 35.

An Act to amend the Law relating to prisons in Scotland by abolishing the distinction between general prisons and ordinary prisons. [15th August 1904.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

General
prisons to
be ordinary
prisons.

1.—(1) All existing general prisons in Scotland shall be ordinary prisons within the meaning of the Prisons (Scotland) Act, 1877, and any reference in any Act to an ordinary prison shall be deemed to include a reference to an existing general prison.

(2) The words "other than the General Prison at Perth or" any prison which may hereafter be declared by Her Majesty in